

STATE OF NEW YORK

3139--A

2025-2026 Regular Sessions

IN SENATE

January 23, 2025

Introduced by Sens. COONEY, FAHY, FERNANDEZ, HELMING, MATTERA, OBERACKER, RHOADS, ROLISON, TEDISCO, WEBB, WEBER -- read twice and ordered printed, and when printed to be committed to the Committee on Higher Education -- recommitted to the Committee on Higher Education in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to providing free SUNY, CUNY and community college tuition to active volunteer firefighters, volunteer emergency medical services providers, and volunteer auxiliary police officers

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Paragraph h of subdivision 2 of section 355 of the education law is amended by adding a new subparagraph 1-a to read as follows:

(1-a) The trustees shall implement a program to permit any student who has been admitted to a state-operated institution of the state university to attend one class per semester without the payment of tuition and fees if such student serves as an active volunteer firefighter, as defined in subdivision one of section two hundred fifteen of the general municipal law, volunteer emergency medical services provider, or volunteer auxiliary police officer, provided that the provisions of this subparagraph shall only apply to costs of courses taken toward the completion of one undergraduate degree program.

(i) The trustees shall provide an application process and administer the program according to the following criteria:

(A) Any student eligible for resident tuition rates is eligible for this program, provided that at the time of application, such student submits proof of membership in good standing of a volunteer fire company or department, volunteer emergency medical services provider or a volun-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD03276-02-6

1 teer auxiliary police officer of a police department within the state of
2 New York.

3 (B) The student shall be required to maintain status as a member in
4 good standing of the volunteer fire company or department, volunteer
5 emergency medical service provider or police department in which such
6 student serves as an auxiliary police officer through the completion of
7 such student's academic program.

8 (C) The student shall be required to maintain a cumulative grade point
9 average (G.P.A.) of at least 2.5 in order to remain eligible for the
10 program.

11 (ii) Any student who elects to participate in the program under this
12 subparagraph shall be required to apply for tuition assistance program
13 funding. Funds awarded on the tuition assistance program shall be
14 applied towards the cost of tuition prior to an award under this clause.

15 (iii) Any student who elects to participate in the program under this
16 subparagraph and is otherwise eligible for the excelsior scholarship
17 program shall be required to apply for same. Funds awarded through the
18 excelsior scholarship program shall be applied towards the cost of
19 tuition prior to an award under this clause.

20 (iv) Students shall be responsible for all other costs including hous-
21 ing, fees and other non-tuition related charges.

22 § 2. Subdivision 7 of section 6206 of the education law is amended by
23 adding a new paragraph (h) to read as follows:

24 (h) The trustees shall implement a program to permit any student who
25 has been admitted to an institution operated by the city university to
26 attend one class per semester without the payment of tuition and fees if
27 such student serves as an active volunteer firefighter, as defined in
28 subdivision one of section two hundred fifteen of the general municip-
29 al law, volunteer emergency medical services provider, or volunteer
30 auxiliary police officer, provided that the provisions of this paragraph
31 shall only apply to costs of courses taken toward the completion of one
32 undergraduate degree program.

33 (i) The trustees shall provide an application process and administer
34 the program according to the following criteria:

35 (A) Any student eligible for resident tuition rates is eligible for
36 this program, provided that at the time of application, such student
37 submits proof of membership in good standing of a volunteer fire company
38 or department, volunteer medical services provider or a volunteer auxil-
39 iary police officer of a police department within the state of New York.

40 (B) The student shall be required to maintain status as a member in
41 good standing of the volunteer fire company or department, volunteer
42 emergency medical service provider or police department in which such
43 student serves as an auxiliary police officer through the completion of
44 such student's academic program.

45 (C) The student shall be required to maintain a cumulative grade point
46 average (G.P.A.) of at least 2.5 in order to remain eligible for the
47 program.

48 (ii) Any student who elects to participate in the program under this
49 paragraph shall be required to apply for tuition assistance program
50 funding. Funds awarded on the tuition assistance program shall be
51 applied towards the cost of tuition prior to an award under this subpar-
52 agraph.

53 (iii) Any student who elects to participate in the program under this
54 subparagraph and is otherwise eligible for the excelsior scholarship
55 program shall be required to apply for same. Funds awarded through the

excelsior scholarship program shall be applied towards the cost of tuition prior to an award under this subparagraph.

(iv) Students shall be responsible for all other costs including housing, fees and other non-tuition related charges.

§ 3. Subdivision 1 of section 6304 of the education law is amended by adding a new paragraph e to read as follows:

e. The trustees, sponsors or other governing body of a community college shall implement a program to permit any student who has been admitted to such community college to attend one class per semester without the payment of tuition and fees if such student serves as an active volunteer firefighter, as defined in subdivision one of section two hundred fifteen of the general municipal law, volunteer emergency medical services provider, or volunteer auxiliary police officer, provided that the provisions of this subparagraph shall only apply to costs of courses taken toward the completion of one undergraduate degree program.

(i) The trustees shall provide an application process and administer the program according to the following criteria:

(A) Any student eligible for resident tuition rates is eligible for this program, provided that at the time of application, such student submits proof of membership in good standing of a volunteer fire company or department, volunteer medical services provider or a volunteer auxiliary police officer of a police department within the state of New York.

(B) The student shall be required to maintain status as a member in good standing of the volunteer fire company or department, volunteer emergency medical service provider or police department in which such student serves as an auxiliary police officer through the completion of such student's academic program.

(C) The student shall be required to maintain a cumulative grade point average (G.P.A.) of at least 2.5 in order to remain eligible for the program.

(ii) Any student who elects to participate in the program under this paragraph shall be required to apply for tuition assistance program funding. Funds awarded on the tuition assistance program shall be applied towards the cost of tuition prior to an award under this subparagraph.

(iii) Any student who elects to participate in the program under this subparagraph and is otherwise eligible for the excelsior scholarship program shall be required to apply for same. Funds awarded through the excelsior scholarship program shall be applied towards the cost of tuition prior to an award under this subparagraph.

(iv) Students shall be responsible for all other costs including housing, fees and other non-tuition related charges.

§ 4. This act shall take effect July 1, 2027.